



May 1st 2017 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=8-DUjNmVnPg
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Delaware County Commissioners Meeting Report

Meeting Date: May 1, 2017

Body: Delaware County Commissioners

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** 00:00:45 Public Hearings regarding the assignment of tax sale certificates to a nonprofit corporation for properties in Eaton, Indiana, specifically blocks of North Meridian Street and North High Street (the Midwest complex properties).
- **Summary of Discussion:** Legal representatives and property stakeholders discussed complex historical property assessments, tax encumbrances exceeding \$55,000, and quiet title actions. Property owner Donald Blair and attorney David Carnes testified regarding years of litigation following a 2011 tax sale, arguing that disparate parcel assessments unfairly burdened them with taxes for improvements spanning multiple lot lines. County Assessor Jane Carmichael and Economic Development representatives clarified assessment procedures, housekeeping issues regarding property combinations, and statutory requirements for tax sale bidders.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** 00:00:06 Called to order by the presiding officer on Monday, May 1, 2017.
 - **Attendance:**
 - **Present:** Commissioners Henry, Reagan, and [King/Kain]. (*Note: Presiding officer and specific member names are referenced via roll calls as Mr. Henry, Ms. Reagan, and Mr. King/Kain.*)
 - **Absent:** None noted in transcript.
 - **Presiding Officer:** Mr. Henry / Board Chair.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** 00:00:12 The meeting opened with the Pledge of Allegiance.
 - **Approval of Minutes:** 00:39:41 Approved by Voice Vote (motion carried following a second).
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4. Substantive Business & Board Action

- **00:32:52 Board Appointment: Cread Board**
 - **Sponsor / Presenter:** IBEW representative.
 - **Deliberation Summary:** Appointment of Jeff Rotifer (IBEW) to the Cread Board, replacing Kevin Koch who relocated to Illinois.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call votes recorded: Mr. Henry - Yes, Ms. Reagan - Yes, Mr. King - Yes).
- **00:33:50 Tabled Business: Fixed Assets Program Update**
 - **Sponsor / Presenter:** Board / Steve.
 - **Deliberation Summary:** Discussion regarding updating county fixed assets, which had not been updated in approximately 10 years. Proposal to hire Michael Nielsen (from DeKalb County) to bring asset sheets up to date.
 - **Action & Vote Disposition:** Motion to take off the table and hire Michael Nielsen approved by Voice Vote (Roll call votes recorded: Ms. Reagan - Yes, Mr. Henry - Yes, Mr. King - Yes).
- **00:37:02 Tabled Business: Tax Sale Certificate Assignment (3700 South Madison / Corrected Address)**
 - **Sponsor / Presenter:** Board / Legal staff.
 - **Deliberation Summary:** Discussion regarding a previous public notice error listing 3700 North Bethesda instead of South Madison. The item was removed from the table to handle via a corrected resolution and new public hearing notice.
 - **Action & Vote Disposition:** Motion to take off the table approved by Voice Vote.

- **00:38:05 Bidding / Contract Award: Bridge Project on 23rd Street (Bridge #226 / Milestone)**
 - **Sponsor / Presenter:** County Engineer / Milestone contractors.
 - **Deliberation Summary:** Review of three bids for the 23rd Street bridge project. The engineer certified Milestone Contractors' bid at \$373,332.50. Federal/local matching funds confirmed at 80/20.
 - **Action & Vote Disposition:** Contract awarded to Milestone Contractors. Approved by Voice Vote.
- **00:39:55 Contract Amendment: Interlocal Agreement for Animal Care and Services**
 - **Sponsor / Presenter:** Board.
 - **Deliberation Summary:** Consideration of amendments to the interlocal agreement for animal care, noting an appropriation increase to \$150,000 for the county's share based on operational calls and historical data.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call votes recorded: Ms. Reagan - Yes, Mr. Henry - Yes, Mr. King - Yes).
- **00:42:39 Response to Employee Grievances (Sheriff's Department / Merit Deputies / Court Security / Jail Unit)**
 - **Sponsor / Presenter:** Board / County administration.
 - **Deliberation Summary:** Formal presentation and denial/dismissal of specific union grievances regarding longevity pay, health insurance changes for retirees, educational incentives, and procedural timelines.
 - **Action & Vote Disposition:** Motion to approve the county's formal response denying/addressing the grievances. Approved by Voice Vote (Roll call votes recorded: Ms. Reagan - Yes, Mr. Henry - Yes, Mr. King - Yes).
- **00:47:09 Engineering Services Agreement: SJCA (Bridge #701 / Over Halfway Creek Rehab)**
 - **Sponsor / Presenter:** Board / Engineering.
 - **Deliberation Summary:** Engineering services agreement with SJ Christian Associates (SJCA) for Bridge #701 (Over Halfway Creek rehabilitation) for an amount not to exceed \$42,900, covering plans, utility coordination, permitting, bidding, and part-time construction inspection.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call votes recorded: Mr. Henry - Yes, Ms. Reagan - Yes, Mr. King - Yes).
- **00:48:33 Second Reading: Ordinance 2017-2 (Adopting Delaware County Personnel Policy Handbook)**
 - **Sponsor / Presenter:** Board / Rick Lee.
 - **Deliberation Summary:** Second reading and adoption of the Delaware County Personnel Policy Handbook. Discussion held regarding rules on 9-1-1 dispatchers serving as volunteer police officers/reserves and potential Fair Labor Standards Act (FLSA) wage/overtime implications for internal volunteers.

- **Action & Vote Disposition:** Adopted by Voice Vote (Roll call votes recorded: Mr. Henry - Yes, Ms. Reagan - Yes, Mr. King - Yes).
 - **00:51:16 Resolution 2017-017: Corrected Tax Sale Certificate Assignment (3700 South Madison)**
 - **Sponsor / Presenter:** Board.
 - **Deliberation Summary:** Resolution correcting the property address from North Bethesda to South Madison and setting a new public hearing date for May 15, 2017.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call votes recorded: Mr. Henry - Yes, Mr. King - Yes).
 - **00:52:13 Resolution 2017-018: Final Determination on Tax Sale Certificate Assignment**
 - **Sponsor / Presenter:** Board.
 - **Deliberation Summary:** Resolution making a final determination regarding a tax sale certificate assignment to a nonprofit corporation.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call votes recorded: Mr. Henry - Yes, Ms. Reagan - Yes, Mr. King - Yes).
 - **00:52:59 Resolution 2017-019: Real Estate Transfer to Muncie Sanitary District**
 - **Sponsor / Presenter:** Board / Atkin Answer (FC Tucker Sherry) / MSD President Smith.
 - **Deliberation Summary:** Resolution transferring real estate (two small lots / "Jerry lot" on West 3rd Street) to the Muncie Sanitary District to assist with their \$160 million source-separation stormwater mandate. Includes authorization for a commissioner to sign closing documents.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call votes recorded: Ms. Reagan - Yes, Mr. Henry - Yes, Mr. King - Yes).
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5. Open Public Comment / Citizen Forum

- *Note: General floor comments were integrated into the substantive public hearings section (Item 1) rather than a separate conclusion.*
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **00:55:49** Weights and measures reports received.
 - Payment of claims presented in the amount of **\$1,589,287.50** (Approved by Voice Vote).
 - **00:56:26** Additional authorization granted (up to \$1,500) for right-of-way/parcel purchase negotiations concerning Bridge #226 (approved by voice vote).

- **Adjournment:** 00:57:07 Motion to recess/adjourn approved by Voice Vote (Roll call votes recorded: Mr. Henry - Yes, Ms. Reagan - Yes, Mr. King - Yes).

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